

Satishchandra Purushottam Kale vs The State Of Maharashtra And Ors on 24 August, 2022

Author: Sharmila U. Deshmukh

Bench: Revati Mohite Dere, Sharmila U. Deshmukh

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11-wp.423.202

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CRIMINAL APPELLATE JURISDICTION

CRIMINAL WRIT PETITION NO.423 OF 2021

Satishchandra Purushottam Kale
Versus
The State of Maharashtra and Ors.

WITH
CRIMINAL INTERIM APPLICATION NO.863 OF 2022
IN
CRIMINAL WRIT PETITION NO.423 OF 2021

Anjusha Satishchandra Kale

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IN THE MATTER OF:-
Satishchandra Purushottam Kale
Versus
The State of Maharashtra and Ors.

Ms. Manjula Rao and Mr. Chandrashekhar Yadav, i/b Mr. Hitesh P
Vyas, for the Petitioner.

Ms. M. M. Deshmukh, A.P.P for the Respondent No.1 - State.

Mr. S. K. Halwasia, Additional P.P. for the Respondent Nos.2 a

CORAM : REVATI MOHITE DERE
SHARMILA U. DESHMUKH

DATE : 24th AUGUST 2022 11-wp.423.2021.w.ia.863.2022.doc P.C. :

1. We are informed that the dispute between the petitioner and the respondent No.4 has been amicably settled and that Consent Terms have been entered into between the parties. We are further informed that pursuant thereto, the petition filed in the Family Court has been amended and as such divorce is sought under Section 13-B of the Hindu Marriage Act.

2. Learned Counsel for the petitioner has tendered an order dated 2nd August 2022, passed by this Court (Coram: Prakash D. Naik, J.) in Civil Contempt Petition No.474 of 2019. Para 3 of the said order dated 2nd August 2022, reads thus:-

"3. In view of the consent terms executed between the parties the family Court is requested to waive mandatory period of six months for deciding the divorce petition and to proceed with passing the decree under Section 13-B of the Hindu Marriage Act, as agreed by both the parties. It is expected that both the parties will adhere the consent terms."

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3. Considering the aforesaid, we direct the learned Judge, Family Court, to decide the said petition, as expeditiously as possible, and in any event within two weeks from the date of receipt of this order.

4. Stand over to 14th September 2022.

SHARMILA U. DESHMUKH, J. REVATI MOHITE DERE, J.